

one keep asking for special permission to employ women after 7 p.m.? This is the stuff one gets in the 1954 Delhi Shops and Establishments Act and each state has a counterpart.

There is the broader issue of old laws and a narrower one of colonial laws. One would have expected an independent country to purge legislation of all colonial tinges, such as continued references to the Privy Council, if not in 1947, at least in 1950, since that is more important than becoming post-colonial by renaming streets or removing statues. On removing statutes, nothing was done till 1960, however, when the British Statutes (Application to India) Repeal Act was passed. As the name suggests, the intention of this legislation was somewhat different. Minor repeals occurred in 1964, 1974 and 1978. However, notwithstanding the 96th (1984) Report by the Law Commission, there was no spring-cleaning. The odd statute was repealed, here and there. For whatever reason, the momentum picked up in 1990s, perhaps triggered by economic reforms. There was the 148th (1993) Report by the Law Commission and a 2004 British (Statutes) Repeal Act. However, we are still tinkering with specific statutes. More importantly, it is not always the case that a statute can be repealed in its entirety. In such instances, change is easier. But in most cases, the statute needs retention, though specific sections need junking. That's more complicated.

No one is objecting to colonial statutes per se, unless they retain vestiges of colonial legacies. The objection is to old laws. Consider the Indian Penal Code (IPC). The IPC has stood the test of time and will undoubtedly remain and at some point Section 377 (unnatural offences) will be amended, because it has entered public discourse. However, Section 125 has a reference to "war against the government of any Asiatic Power in alliance or at peace with the Government of India". That was appropriate lan-

guage in 1860. Surely, it isn't the language we should have in 2009 and the point is this language won't be changed, because it hasn't entered public discourse. This may seem a trivial example, but there are non-trivial instances too. For Central and state-level statutes and administrative law, we need to ask a simple question. Does this legislation make sense today? Do all its sections make sense, bearing in mind its relationship with other legislation? If not, it deserves junking.

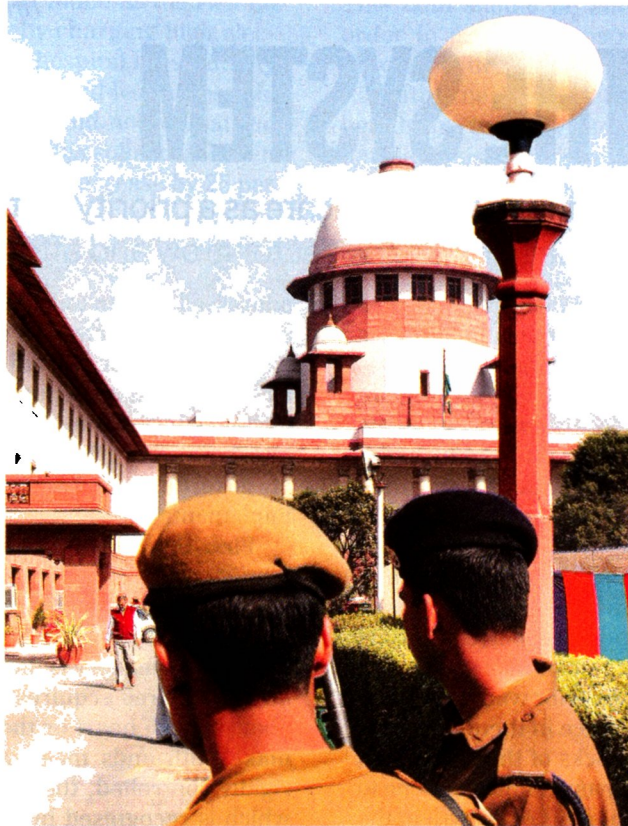
But who asks these questions? Barring instances where some contemplated economic reform requires these questions to be asked, the answer is no one. Not the Law Commission. And even when the Law Commission makes recommendations, they aren't always implemented. Not to forget the limited time Parliament has for legislative business. With common/civil law differences blurring, we should introduce desuetude for all new legislation. There should be a sunset clause for all laws (say 25 years), unless a review establishes the need for their continuation.

We need a natural exit policy for laws. Otherwise, life expectancy for laws becomes hundreds of years. Indeed, there should be a cost-benefit exercise before any law is enacted. On existing old laws, as in Britain since 2001 (the original Regulatory Reform Act dates to this year), perhaps some repeals can be done by the executive rather than the legislature. This law in Britain effectively permitted

old laws to be scrapped by the executive, without going before Parliament.

Whatever the mode, we shouldn't postpone this scrutiny of old laws. It's also part of the broader governance agenda, something every political party harps about. There can't be better governance without better laws. There can't be better laws if old ones remain. Let this overdue agenda, therefore, be the most important point on the new government's action plan. It won't happen if left to the Law Ministry; it requires the direct intervention of the next prime minister. ■

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OLD AND DYSFUNCTIONAL LAWS ARE OFTEN USED TO HARASS OR PROSECUTE. DO SUCH REGULATIONS MAKE SENSE TODAY?